

findings are contrary to the weight of the evidence.

"Evidence Code section 664, which presumes that an official duty has been regularly performed, has been widely applied to DMV administrative hearings." (*Petricka v. Department of Motor Vehicles* (2001) 89 Cal.App.4th 1341, 1348.) "Evidence Code section 664, which affects the burden of proof, can satisfy the DMV's burden of proving that appropriate procedures have been properly performed. Once a prima facie case is made, the burden then shifts to the driver to show improper performance, either by cross-examination of the arresting officer or by the introduction of affirmative evidence." (*Ibid.*)

Here, Officer Gardner stated two bases for the stop. Petitioner's truck was missing a front license plate, which he noted was "a violation of California Vehicle Code section 5200(a)," and the registration was showing as expired, according to a DMV check (despite a current sticker on the vehicle), which he noted was a "violation of California Vehicle Code section 4000(a)(1)." (AR 18.) The documentary evidence here satisfied the Department's initial burden of proof. The court finds that the record is sufficient as to the officer's reason for the stop even without the presumption afforded under Section 664.

On direct examination, petitioner testified she did not observe the officer until after he was driving behind her. She did not establish that her failure to observe the officer would mean he was not there, or could not have otherwise observed the lack of front license plate. Petitioner also did not provide any evidence to undermine the officer's representation he "performed a DMV records check of the vehicle" or that he "saw its registration was expired as of 06/30/2025." (AR 18.) The Hearing Officer was not required to give petitioner's testimony more weight than the report by the officer.

The Court agrees with the hearing officer's finding that the incorrect date, combined with petitioner's testimony, "insufficient to rebut the Department's evidence and invalidate the official duty presumption." The Court further agrees that no probative evidence or testimony substantiated a version of events other than the version described in the police report.

On the record here, the Court independently finds that the Department's findings of fact and decision were supported by the weight of the evidence. The writ must therefore be **denied**.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
COMPEL CROSS-DEFENDANT MICHAEL JENKINS' DEPOSITION
FILED BY: D & A CARRIER, INC,
TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the Parties."

Once a court grants a motion to compel arbitration, the case enters what has been called “the twilight zone of abatement,” in which the court maintains “merely a vestigial jurisdiction over matters submitted to arbitration.” (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally “consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not....” (*Id.*) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
ISSUE CONFERENCE AND TRIAL PLANNING. ALL PARTIES WITH SETTLEMENT AUTHORITY SHALL
APPEAR IN PERSON IN D32. DEF ADJUSTER MAY ATTEND REMOTELY
FILED BY:

TENTATIVE RULING:

Parties to appear.

Law & Motion Add On

17. 9:00 AM CASE NUMBER: C25-02254
CASE NAME: REID GREENLAW VS. TERESA TRUONG
***MOTION/PETITION TO COMPEL ARBITRATION ADVANCED PER TR ON 6/26/26**
FILED BY: TRUONG, TERESA

TENTATIVE RULING:

Before the Court is a motion to compel arbitration filed by Defendant Emeritus Corporation dba Brookdale Danville (erroneously sued as Brookdale Danville), Defendant Brookdale Living Communities, Inc., Defendant Brookdale Senior Living Communities, Inc., Defendant Brookdale Senior Living Foundation, and Defendant Teresa Truong (collectively, “Defendants”). For the reasons set forth below, the motion is **granted**. The action shall be **stayed** pending completion of the arbitration.

The Plaintiffs’ motion for trial preference, continued to August 7, 2026 by the court’s order dated June 26, 2026, is **denied** as moot in light of this ruling.